

1.

CASE #	CASE NAME	HEARING NAME
CVCO2601469	NAJA SANCHEZ VS UNITED STATES FIRE INSURANCE COMPANY, A DELAWARE CORPORATION	MOTION TO CONSOLIDATE

Tentative Ruling:

GRANT

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304765	CORREA VS FORD MOTOR COMPANY	MOTION FOR SUMMARY ADJUDICATION

Tentative Ruling:

DENY Summary Adjudication as to the 5th cause of action for fraudulent concealment. Deny Plaintiff's Request for Judicial Notice as the request is not dispositive to the motion.

Defendant has failed to meet its burden on summary adjudication of showing that no triable issue of material fact exists. Plaintiff purchased her vehicle from *Sunrise Ford*. (Undisputed Facts "UF" No.1 ; Liu Decl., Para.3, Exh. 2) Defendant argues there is no transactional relationship between the parties because there were no direct dealings between Plaintiff and FMC, however, FMC fails to produce any evidence that the selling dealer, *Sunrise Ford*, was not its agent. Defendant only submits its "Ford Sales & Service Agreement between Ford Motor Company and *Hemborg Ford*" (Lukas Decl., Para.4) to show lack of agency, but *Hemborg Ford* was the *repairing* dealer sued in the 6th cause of action, not the *selling* dealer. Defendant fails to produce a contract, disclaimer, or other evidence establishing that the actual selling dealer, *Sunrise Ford*, was not acting as its agent. Even if FMC had produced such a "no-agency" agreement between it and *Sunrise Ford*, the declarations of the parties in the agreement respecting the nature of the relationship is not controlling. Whether an agency relationship exists between Defendant and the dealer is a question of fact to be determined by the parties' conduct, which cannot be resolved by this motion. Additionally, this court follows *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, where the court found that the Plaintiff had sufficiently pled a transactional relationship on facts similar to this case.